

SENATE/HOUSE FILE _____
BY (PROPOSED ATTORNEY GENERAL
BILL)

A BILL FOR

1 An Act relating to criminal investigation, including the
2 extension of DNA submission requirements to persons
3 arrested for a felony or aggravated misdemeanor, and making
4 appropriations to support the investigation of cold cases.
5 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

DIVISION I

DNA PROFILING

Section 1. Section 81.1, subsection 12, Code 2026, is amended to read as follows:

12. "*Person required to submit a DNA sample*" means a person arrested, convicted, adjudicated delinquent, receiving a deferred judgment, or found not guilty by reason of insanity of an offense requiring DNA profiling pursuant to section 81.2. "*Person required to submit a DNA sample*" also means a person determined to be a sexually violent predator pursuant to section 229A.7.

Sec. 2. Section 81.2, subsections 1 and 5, Code 2026, are amended to read as follows:

1. A person who is arrested for a felony or aggravated misdemeanor or who receives a deferred judgment for a felony or against whom a judgment or conviction for a felony or aggravated misdemeanor has been entered shall be required to submit a DNA sample for DNA profiling pursuant to section 81.4.

5. An offender placed on probation shall immediately report to the judicial district department of correctional services after sentencing so it can be determined if the offender has been arrested or convicted of an offense requiring DNA profiling. If it is determined by the judicial district that DNA profiling is required, the offender shall immediately submit a DNA sample.

Sec. 3. Section 81.2, Code 2026, is amended by adding the following new subsection:

NEW SUBSECTION. 7. A sample is not required pursuant to this section if it is determined that a sample has previously been taken, is in the possession of the DNA database or DNA data bank established pursuant to section 81.3, and has not been expunged pursuant to section 81.9.

Sec. 4. Section 81.9, Code 2026, is amended to read as follows:

81.9 Expungement of DNA records.

1 1. A person whose DNA record has been included in the DNA
2 database or DNA data bank established pursuant to section
3 81.3 may request, in writing to the division of criminal
4 investigation, expungement of the DNA record from the DNA
5 database and DNA data bank based upon the either of the
6 following:

7 a. The person's conviction, adjudication, or civil
8 commitment which that caused the submission of the DNA sample
9 being reversed on appeal and the case dismissed. The written
10 request shall contain a certified copy of the final court order
11 reversing the conviction, adjudication, or civil commitment,
12 and a certified copy of the dismissal, and any other
13 information necessary to ascertain the validity of the request.
14 b. The person's arrest that led to the inclusion of the DNA
15 sample in the DNA database or DNA data bank has resulted in an
16 aggravated misdemeanor or felony charge that has been resolved
17 by dismissal or acquittal, or the failure to file an aggravated
18 misdemeanor or felony charge within one year of arrest.

19 2. The division of criminal investigation, upon receipt of a
20 written request that validates reversal on appeal of a person's
21 conviction, adjudication, or commitment, and subsequent
22 dismissal of the case, upon receipt of a written request that
23 evidences that an arrest was resolved by dismissal or acquittal
24 or the failure to file charges, or upon receipt of a written
25 request by a person who voluntarily submitted a DNA sample
26 pursuant to section 81.3, subsection 3, paragraph "b", shall
27 expunge all of the DNA records and identifiable information of
28 the person in the DNA database and DNA data bank. However,
29 if the division of criminal investigation determines that the
30 person is otherwise obligated to submit a DNA sample, the DNA
31 records shall not be expunged. If the division of criminal
32 investigation denies an expungement request, the division shall
33 notify the person requesting the expungement of the decision
34 not to expunge the DNA record and the reason supporting its
35 decision. The division of criminal investigation decision

1 is subject to judicial review pursuant to chapter 17A. The
2 department of public safety shall adopt rules governing the
3 expungement procedure and a review process.

4 3. The division of criminal investigation is not required
5 to expunge or destroy a DNA record pursuant to this section,
6 if expungement or destruction of the DNA record would destroy
7 evidence related to another person, or investigation.

8 DIVISION II

9 STANDING APPROPRIATION — COLD CASES

10 Sec. 5. NEW SECTION. 13.12A Standing appropriation — cold
11 cases.

12 For the fiscal year beginning July 1, 2026, and for each
13 fiscal year thereafter, there is appropriated from the
14 general fund of the state to the department of justice six
15 hundred thousand dollars for the purposes of investigation and
16 prosecution of cold cases.

17 EXPLANATION

18 The inclusion of this explanation does not constitute agreement with
19 the explanation's substance by the members of the general assembly.

20 This bill relates to criminal investigations. The bill
21 extends DNA submission requirements to persons arrested for
22 a felony or aggravated misdemeanor, and provides a standing
23 appropriation to support the investigation of cold cases.

24 DIVISION I. Current law requires a person who receives a
25 deferred judgment for a felony or against whom a judgment or
26 conviction for a felony or aggravated misdemeanor has been
27 entered to submit a DNA sample for DNA profiling.

28 The bill provides that a person who is arrested for a felony
29 or aggravated misdemeanor, or who receives a deferred judgment
30 for a felony or against whom a judgment or conviction for a
31 felony or aggravated misdemeanor has been entered, shall be
32 required to submit a DNA sample for DNA profiling pursuant to
33 Code section 81.4.

34 The bill provides that a sample is not required if it is
35 determined that a sample has previously been taken, is in the

1 possession of the DNA database or DNA data bank, and has not
2 been expunged.

3 The bill adds that a person may request expungement of the
4 person's DNA record from the DNA database and DNA data bank
5 if the person's arrest that led to the inclusion of the DNA
6 sample in the DNA database or DNA data bank has resulted in an
7 aggravated misdemeanor or felony charge that has been resolved
8 by dismissal or acquittal, or the failure to file an aggravated
9 misdemeanor or felony charge within one year of arrest.

10 DIVISION II. The bill provides a \$600,000 standing
11 appropriation from the general fund of the state to the
12 department of justice each fiscal year beginning July 1, 2026,
13 for investigation and prosecution of cold cases.